



File No.: EXP202402709

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 12, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of access to their medical history against the respondent, and their request, as stated by the complainant, did not receive the legally established response. The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent entity was granted a hearing period, to present any arguments it deemed appropriate within ten working days.

The respondent entity, during the formalized procedures, has demonstrated to this Agency that it has addressed the exercised right and sent the complainant the appropriate response to their request.

LEGAL GROUNDS

I. Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II. Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the complainant's requests were satisfied. Consequently, on April 12, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the

complainant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be disclosed, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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The right of access in relation to the medical record is specifically regulated in Article 18 of Law 41/2002, of November 14, the basic regulatory law of Patient Autonomy and Rights and Obligations in the Matter of Information and Clinical Documentation (hereinafter LAP), the literal text of which states: “1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers

shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners shall only grant access to the medical records of deceased patients to persons linked to them, for family or factual reasons, unless the deceased expressly prohibited it and this is accredited. In any case, access by a third party to the medical record motivated by a risk to their health shall be limited to the pertinent data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided."

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

"1. The medical record shall include the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their healthcare processes, carried out by the health service both in the primary care and specialized care settings.

2. The primary purpose of the medical record shall be to facilitate healthcare, documenting all those data that, under medical criteria, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record shall be as follows:

a) Documentation related to the clinical-statistical sheet.

b) Admission authorization.

c) Emergency report.

d) Anamnesis and physical examination.

e) Evolution.

f) Medical orders.

g) Consultation sheet.

h) Reports of complementary examinations.

i) Informed consent.

j) Anesthesia report.

k) Operating room report or childbirth record.

l) Pathological anatomy report.

m) Nursing care evolution and planning.

n) Therapeutic nursing application.

ñ) Vital signs chart.

o) Clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) shall only be required in the completion of the medical record when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical record, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

4. The medical record shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the professionals of the data of a specific patient in each healthcare process."

Regarding the preservation of the medical record, Article 17 of the LPA, in its points 1 and 5, states:

"1. Health centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original support, for the proper assistance to the patient for the time appropriate to each case and, at a minimum, five years from the date of discharge from each healthcare process...

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the healthcare documentation they generate."

Conclusion

In the case analyzed here, the claimant exercised their right of access to the medical record. After the period established in the aforementioned regulations elapsed, their request did not receive the legally required response.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

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Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, made precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be specified that the response that must be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to formally uphold the present claim due to the response being issued late, without requiring additional actions by the data controller to issue a new certification regarding the exercise of the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons the claim made by A.A.A. against the entity CLÍNICA DENTAL GAMERO, S.L., with NIF B94162039. However, the issuance of a new certification by said entity is not warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to CLÍNICA DENTAL GAMERO, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, a voluntary appeal for reconsideration may be filed before the Director of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or a direct contentious-administrative appeal may be filed before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

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